

24STCV29367 24STCV29367

County: los-angeles

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SUPERIOR

COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil

Division

Central

District, Stanley Mosk Courthouse, Department 311

Tentative

Ruling

24STCV29367

SEDIGHEH

HAJIZADEH v. MAGIC MOUNTAIN, LLC

July

2, 2026

8:30

AM

NATURE OF PROCEEDINGS:

DEFENDANT MAGIC MOUNTAIN, LLC'S MOTION FOR SUMMARY JUDGMENT, OR IN THE
ALTERNATIVE, SUMMARY ADJUDICATION.

RULING:

The Court denies the
Motion for Summary Judgment and Alternative Motion for Summary Adjudication.

Prevailing party
Plaintiff to give notice.

I.
BACKGROUND

On March 21, 2024,
SEDIGHEH HAJIZADEH (Plaintiff) filed this action.

On November 8, 2024, Plaintiff
filed a First Amended Complaint for Declaratory Relief, against MAGIC MOUNTAIN,
LLC (Defendant).

Plaintiff seeks a
declaration that (1) a dismissal with prejudice of the initial action in Santa
Clara Superior Court, is void, and (2) the dismissal with prejudice does not
have the effect of res judicata, collateral estoppel, or other preclusive
effects.

Plaintiff's former
attorney filed a case Sedigheh Hajizadeh v. Magic Mountain, LLC, et al.,
case number 21STCV19791, in Los Angeles Superior Court, after having
inadvertently dismissed, with prejudice, without client authorization, the initial
case that had been filed in Santa Clara Superior Court, which was in the wrong
County.

The Santa Clara Superior
Court denied Plaintiff's Code of Civil Procedure section 473 Motion for Relief from
the voluntary dismissal, reasoning that Plaintiff untimely filed the motion.
(Order filed 6/20/24, pp. 4-5.)

On August 13, 2024, Santa
Clara Superior Court issued its Order on the Motion of Defendant Magic Mountain
LLC for Change of Venue to Los Angeles County, granting it, and ordering this
case transferred to Los Angeles Superior Court.

By Motion filed April 9, 2026, Defendant brings a Motion for Summary Judgment or Summary Adjudication of Issues addressing Declaratory Relief and Laches, on bases including that this case is barred by collateral estoppel, due to denial of the Motion for Relief and the subsequent failure to appeal.

Plaintiff's opposition essentially relies upon cites to support the proposition that this collateral attack case, based upon a void judgment, is not barred for any reason argued in the Motion.

II.

LEGAL STANDARD

Parties moving for summary judgment have the initial burden to make a prima facie showing of the nonexistence of any triable issue of material fact in order to shift the burden to opposing parties to make a prima facie showing of triable issues of material fact. (*Kids' Universe v. In2Labs* (2002) 95 Cal. App. 4th 870, 878.) The function of a motion for summary judgment or adjudication is to allow a determination as to whether an opposing party cannot show evidentiary support for a pleading or claim and to enable an order of summary dismissal without the need for trial. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 843.)

"A defendant moving for summary adjudication 'must satisfy the initial burden of production and make a prima facie showing that "one or more elements of the cause of action ... cannot be established, or that there is a complete defense to the cause of action." ' " If the defendant carries this initial burden, the burden shifts to the plaintiff to show a triable issue of material fact exists." (*Bradsbery v. Vicar Operating, Inc.* (2025) 110 Cal.App.5th 899, 907.)

"[F]actual issues presented in opposition to a motion for summary judgment should be considered if the controlling pleading, construed broadly, encompasses them. In making this determination, courts look to whether the new factual issues present different theories of recovery or rest on a fundamentally different factual basis." (*Laabs v. City of Victorville* (2008) 163 Cal.App.4th 1242, 1257.)

III.

ANALYSIS

Defendant argues that the deadline for moving for statutory relief, as to a void entry of a dismissal with prejudice, is within two years after the request for dismissal with prejudice of Plaintiff's first case. And Defendant reasons that Plaintiff impermissibly relitigates after counsel dismissed the prior case with prejudice over two-years-and-eight-months before filing the Complaint for Declaratory Relief in a prior action involving the same parties. Besides arguing collateral attack, collateral estoppel, and time bars, Defendant adds that the defense of Laches applies to this action.

Plaintiff contends that former counsel's unauthorized dismissal of the action with prejudice resulted in a void Judgment that can be vacated by direct attack in this action, without any time or restriction under Code of Civil Procedure section 473. Plaintiff further reasons that this is an authorized collateral attack on the Santa Clara Judgment that does not duplicate a prior case, and that the prior Judge's denial of the Motion to Vacate is immaterial in this procedure. As for Laches, Plaintiff asserts that Defendant failed to file evidence in support of the elements, whereas Plaintiff filed this action within days of learning of the unauthorized dismissal and Defendant litigated the merits continuously without prejudice being caused.

There are several issues of law that are the focus of this matter.

First, "the prior denial of a motion in the underlying case to set aside a default and default judgment has no collateral estoppel effect to bar an independent action in equity directly attacking the prior judgment." (Groves v. Peterson (2002) 100 Cal.App.4th 659, 661.) A denial of a motion made under Code of Civil Procedure section 473 is not res judicata as to a complaint in equity where the ruling was based upon procedural or jurisdictional grounds or the judgment is being directly, not collaterally, attacked. (Sternbeck v. Buck (1957) 148 Cal.App.2d 829, 831 (Sternbeck) [motion had been denied as untimely and was not a bar].) "The doctrine of res judicata is inapplicable to void judgments." (40A Cal. Jur. 3d Judgments § 329.)

Second, an attorney's

unauthorized disposition of parties' substantive rights can be either voidable or void. (*W. Bradley Electric, Inc. v. Mitchell Engineering* (2024) 100 Cal.App.5th 1, 15.) Most important in this matter is that attorney acts, including mistakes affecting substantive rights, are void, absent express client consent. (*Romadka v. Hoge* (1991) 232 Cal.App.3d 1231, 1236-1237 ["The trial court had before it the attorney's declaration and testimony that she acted without authority and by mistake. Given that there was no conceivable reason to dismiss the action with prejudice rather than without prejudice, the trial court could not have disbelieved this evidence. The court therefore abused its discretion in denying plaintiffs' motion to vacate the dismissal with prejudice."].) For instance, an attorney cannot settle a case without express client authority, and there is no implied or ostensible authority. (*Blanton v. Womancare, Inc.* (1985) 38 Cal. 396, 404. See also generally Cal. Prac. Guide Prof. Resp. & Liability, § 3:139.) And a void judgment may be vacated by a judge in another case. (Cal. Judges Benchbook Civ. Proc. After Trial § 3.4.)

Distinctions between

direct and collateral attacks can be misunderstood. "An action in equity to set aside a judgment entered in a prior action is treated as a direct rather than as a collateral attack." (Sternbeck, *supra*, 148 Cal.App.2d at p. 832.)

"A direct attack upon a judgment or order is usually one made in the same proceeding by appeal, or motion under section 473, Code of Civil Procedure, or one made in a separate suit in equity to set aside the judgment or order upon equitable grounds. A collateral attack is an attempt to avoid the effect of a judgment or order made in some other proceeding. In such attack the invalidity of the former judgment or order must appear on the face of the record." (*Palmquist v. Palmquist* (1963) 212 Cal.App.2d 340, 344.) (Underscoring added.) "Either a 'direct attack' or a 'collateral attack' are the procedural mechanisms available to challenge a judgment that is allegedly void. A direct attack means an attack on the judgment in the action in which it was rendered, or a proceeding instituted for the specific purpose of attacking the judgment.... In contrast, a collateral attack is any procedural challenge that does not constitute a direct attack." (*OC Interior Services, LLC v. Nationstar Mortgage, LLC* (2017) 7 Cal.App.5th 1318, 1326-1327.) "Extrinsic evidence, i.e., evidence outside the judgment roll, may be presented on direct attack of a judgment that is valid on the face of the record to rebut the presumption that the judgment is valid." (*OC Interior Services, LLC v. Nationstar Mortgage, LLC* (2017) 7 Cal.App.5th 1318, 1328.)

Third, "a judgment or

order valid on its face but claimed to be void based on extrinsic evidence may be attacked in an independent equitable action without time limits.” (California Cap. Ins. Co. v. Hoehn (2024) 17 Cal.5th 207, 215.) Even under section 473, subdivision (d), judges may set aside a judgment or order that is void, without any time limitation. (Lee v. An (2008) 168 Cal.App.4th 558, 563.) Further, procedures to vacate a void judgment are direct attacks, as to which lack of jurisdiction may be shown by extrinsic evidence outside of the judgment roll. (County of San Diego v. Gorham (2010) 186 Cal.App.4th 1215, 1228.) Therefore, Plaintiff need not rely upon relief under Code of Civil Procedure section 473 having a six-month limitation, and judicial or attorney clerical error need not apply, where a void judgment serves as a basis for changing it.

A defense-cited opinion

(Reply, 2:27) is inapposite, because it distinguishably involved no direct attack or collateral attack of the type involved in this action. (See Barker v. Hull (1987) 191 Cal.App.3d 221, 224 [“The instant complaint is not a direct attack on the former judgment, but a collateral attempt....”].) Further, much evolution of law has followed that opinion, as analyzed above. Older case authority may be impliedly overruled by a later trend of decisions without an opinion expressly overruling. (Frisk v. Superior Court (2011) 200 Cal.App.4th 402, 411. See also Sei Fujii v. State (1952) 38 Cal.2d 718, 728 [“the authority of an older case may be as effectively dissipated by a later trend of decision as by a statement expressly overruling it.”]; Reno v. Baird (1998) 18 Cal.4th 640, 661 [“Although these decisions do state what the Court of Appeal asserts, on examination, they do not provide strong support for plaintiff’s position. More importantly, they rested solely on now-outdated federal authority.”]; People v. Foss (2007) 155 Cal.App.4th 113, 123 [“assumptions and reasoning underlying the ... court’s conclusion are no longer valid because they are outdated and have been disproved in the cases and statutes....”].)

Here, the Court

determines that there are triable issues of material fact, as to issues such as a void Judgment caused by lack of client authority thereby making it a legitimate target of attack in this separate action based upon equitable relief, and without any time limit. (E.g., Opposing Separate Statement, pp. 4-6, fact numbers 4-8, and proof referenced thereat.)

As for the Affirmative Defense,

Defendant references insufficient evidence of the elements, in laying out a partial sequence of events, without addressing unreasonable delay in asserting the case and thereby causing Defendant's prejudice. (See, Separate Statement, pp. 21-27.) The elements of the Laches defense are these: 1) Failure to assert a right; 2) unreasonable delay; and 3) resulting prejudice to the adverse party. (In re Marriage of Powers (1990) 218 Cal.App.3d 626, 642.) Alternatively, there is a triable issue as to whether Plaintiff first learned, on March 19, 2024, of the Request for Dismissal, and promptly filed this action on March 21, 2024. (Opposing Separate Statement, additional fact "P." and proof referenced thereat.) Laches involves a fact question but may be decided as a matter of law, if facts are not disputed. (Golden Gate Water Ski Club v. County of Contra Costa (2008) 165 Cal.App.4th 249, 263.)

IV.

CONCLUSION

The Court strikes the Reply Evidentiary Objections as not addressing quoted evidence. Evidentiary objections failing to quote the evidence objected to, in violation of California Rules of Court, Rule 3.1354, should be overruled. (Nazir v. United Airlines, Inc. (2009) 178 Cal.App.4th 243, 255-256.) Alternatively, the Court overrules all such objections, it having determined that collateral estoppel is not conclusively established in this matter, as analyzed above. (Cf. Civile v. Civile (1913) 22 Cal.App. 707, 708 ["The issue tendered was therefore res adjudicata, and plaintiff's objection to the evidence offered in support thereof should have been sustained."].)

The Court denies the Motion for Summary Judgment and Summary Adjudication.